

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                            |                                                                                           |                                            |                                                        |                                    |                                            |
|------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------|--------------------------------------------|--------------------------------------------------------|------------------------------------|--------------------------------------------|
| Investigator:<br>Ethan Waterman                                                                            | Team:<br>Squad #10                                                                        | CCRB Case #:<br>202007660                  | <input checked="" type="checkbox"/> Force              | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                                                                            |                                                                                           |                                            | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 11/03/2020 9:45 PM, Tuesday, 11/03/2020 9:50 PM, Tuesday, 11/03/2020 10:45 PM | Location of Incident:<br>Outside § 87(2)(b) en route to § 87(2)(b) Street, Apt § 87(2)(b) | Precinct:<br>44                            | 18 Mo. SOL<br>5/3/2022                                 | EO SOL<br>5/4/2022                 |                                            |
| Date/Time CV Reported<br>Fri, 11/20/2020 10:32 AM                                                          | CV Reported At:<br>CCRB                                                                   | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Fri, 11/20/2020 10:32 AM |                                    |                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Robert Gaylog   | 09105  | 963533 | 044 PCT |
| 2. SGT TIMOTHY BURKE   | 03879  | 950130 | 044 PCT |
| 3. POM Victor Cruz     | 22651  | 957501 | 044 PCT |
| 4. POM Vincent Dempsey | 10828  | 966538 | 044 PCT |
| 5. DT3 Yurantz Assade  | 04516  | 939886 | INT CIS |
| 6. PO WILLIAM CULLEN   | 02509  | 950257 | 044 PCT |
| 7. PO COREY GRAVES     | 02848  | 956696 | 044 PCT |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. POM Scott Ferguson | 22891     | 957576 | 044 PCT  |

| Officer(s)            | Allegation                                                                                                     | Investigator Recommendation |
|-----------------------|----------------------------------------------------------------------------------------------------------------|-----------------------------|
| A.SGT TIMOTHY BURKE   | Abuse: Outside of § 87(2)(b) in the Bronx, Sergeant Timothy Burke forcibly removed § 87(2)(b) to the hospital. | § 87(2)(b)                  |
| B.POM Victor Cruz     | Abuse: Outside of § 87(2)(b) in the Bronx, Police Officer Victor Cruz frisked § 87(2)(b)                       | § 87(2)(b)                  |
| C.POM Vincent Dempsey | Abuse: Outside of § 87(2)(b) in the Bronx, Police Officer Vincent Dempsey frisked § 87(2)(b)                   | § 87(2)(b)                  |
| D.POM Victor Cruz     | Abuse: Outside of § 87(2)(b) in the Bronx, Police Officer Victor Cruz searched § 87(2)(b)                      | § 87(2)(b)                  |
| E.POM Vincent Dempsey | Abuse: Outside of § 87(2)(b) in the Bronx, Police Officer Vincent Dempsey searched § 87(2)(b)                  | § 87(2)(b)                  |
| F.SGT TIMOTHY BURKE   | Abuse: Outside of § 87(2)(b) in the Bronx, Sergeant Timothy Burke ordered the search of § 87(2)(b)             | § 87(2)(b)                  |
| G.POM Robert Gaylog   | Force: En route to § 87(2)(b) Police Officer Robert Gaylog used a chokehold against § 87(2)(b)                 | § 87(2)(b)                  |
| H.POM Robert Gaylog   | Force: En route to § 87(2)(b) Police Officer Robert Gaylog restricted § 87(2)(b)'s breathing.                  | § 87(2)(b)                  |

| Officer(s)            | Allegation                                                                                                                                     | Investigator Recommendation |
|-----------------------|------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| I.POM Robert Gaylog   | Force: En route to § 87(2)(b) Police Officer Robert Gaylog used physical force against § 87(2)(b) § 87(2)(b)                                   |                             |
| J.DT3 Yurantz Assade  | Abuse: Detective Yurantz Assade entered § 87(2)(b) Apartment § 87(2)(b) in the Bronx.                                                          |                             |
| K.DT3 Yurantz Assade  | Abuse: Detective Yurantz Assade searched § 87(2)(b) Apartment § 87(2)(b) in the Bronx.                                                         |                             |
| L.DT3 Yurantz Assade  | Abuse: At § 87(2)(b) Apartment § 87(2)(b) in the Bronx, Detective Yurantz Assade failed to provide § 87(2)(b) § 87(2)(b) with a business card. |                             |
| § 87(4-b), § 87(2)(g) | § 87(4-b), § 87(2)(g)                                                                                                                          |                             |
| § 87(4-b), § 87(2)(g) | § 87(4-b), § 87(2)(g)                                                                                                                          |                             |
| § 87(4-b), § 87(2)(g) | § 87(4-b), § 87(2)(g)                                                                                                                          |                             |
| § 87(4-b), § 87(2)(g) | § 87(4-b), § 87(2)(g)                                                                                                                          |                             |

### Case Summary

On November 20, 2020, § 87(2)(b) called the CCRB and filed this complaint.

On November 3, 2020, § 87(2)(b) was shot in the right arm in front of § 87(2)(b) in the Bronx. At approximately 9:45 p.m., officers from the 44<sup>th</sup> Precinct responded to the location. Sergeant Timothy Burke forcibly removed § 87(2)(b) to the hospital. (**Allegation A, Abuse of Authority: Forcible Removal to Hospital**, § 87(2)(g)). PO Cruz and PO Dempsey frisked and searched § 87(2)(b) (**Allegations B and C, Abuse of Authority: Frisk**, § 87(2)(g)). (**Allegations D and E, Abuse of Authority: Search (of person)**, § 87(2)(g)) while Sgt. Burke ordered Police Officer Scott Ferguson to search § 87(2)(b)'s jacket (**Allegation F, Abuse of Authority: Search (of person)**, § 87(2)(g)).

At approximately 9:50 p.m., Police Officer Victor Cruz, Police Officer Vincent Dempsey, and Police Officer Robert Gaylog of the 44<sup>th</sup> Precinct accompanied § 87(2)(b) in an ambulance en route to § 87(2)(b). PO Gaylog allegedly placed his arm around § 87(2)(b)'s neck, allegedly restricted his breathing, and pulled § 87(2)(b)'s hood over his head (**Allegation G, Force: Chokehold**, § 87(2)(g)). (**Allegation H, Force: Restricted Breathing**, § 87(2)(g)). (**Allegation I, Force: Physical Force**, § 87(2)(g)).

While § 87(2)(b) was hospitalized, at approximately 10:45 p.m., Detective Yurantz Assade of the Criminal Intelligence Section went with Police Officer William Cullen and Police Officer Corey Graves (both of the 44<sup>th</sup> Precinct) went to § 87(2)(b)'s Apartment § 87(2)(b). Det. Assade asked § 87(2)(b)'s girlfriend, § 87(2)(b) to allow officers to enter and search the apartment for weapons. Det. Assade then, with PO Cullen and Graves, entered and searched § 87(2)(b)'s apartment (**Allegation J, Abuse of Authority: Entry of Premises**, § 87(2)(g)). (**Allegation K, Abuse of Authority: Search of Premises**, § 87(2)(g)). Det. Assade allegedly failed to provide § 87(2)(b) with a business card at the conclusion of this incident (**Allegation L, Abuse of Authority: Failure to Provide RTKA card**, § 87(2)(g)).

§ 87(4-b), § 87(2)(g)

§ 87(2)(b) was ultimately arrested on an open complaint report regarding a charge of § 87(2)(b) (**BR 01**). No other arrests or summonses resulted from this incident.

The investigation received BWC footage regarding this incident, the relevant aspects of which shall be discussed below (**BR 02-28**).

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Sergeant Timothy Burke forcibly removed § 87(2)(b) to the hospital.**

**Allegation (B) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Police Officer Victor Cruz frisked § 87(2)(b).**

**Allegation (C) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Police Officer Vincent Dempsey frisked § 87(2)(b).**

**Allegation (D) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Police Officer Victor Cruz searched § 87(2)(b).**

**Allegation (E) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Police Officer Vincent Dempsey searched § 87(2)(b).**

**Allegation (F) Abuse of Authority: Outside of § 87(2)(b) in the Bronx, Sergeant Timothy Burke searched § 87(2)(b).**

It was undisputed that on the night of November 3, 2020, § 87(2)(b) suffered a gunshot wound to his right arm.

In his CCRB interview (**BR 29**), § 87(2)(b) said that on November 3, 2020, at some point in the evening, he was standing in front of his building at § 87(2)(b) in the Bronx when he was shot in his right forearm. § 87(2)(b) was intoxicated and acknowledged that his memory of the incident was hazy. § 87(2)(b) was not with anyone at the time. § 87(2)(b) did not know who shot him. § 87(2)(b) did not even hear the shot, but only noticed once he saw a hole in his forearm where the bullet had travelled. Individuals tried to assist § 87(2)(b) but § 87(2)(b) did not wish for any assistance because he was intoxicated. After an unknown amount of time, approximately 10-15 uniformed officers arrived. Approximately five to 10 of these officers surrounded § 87(2)(b). § 87(2)(b) sat on a stoop in front of his building and told the officers to get away from him, as § 87(2)(b) did not know what the police officers were trying to do. The officers asked § 87(2)(b) “What happened?” and said, “You’re not going nowhere.” § 87(2)(b) clarified that he did not try to walk away from the officers. § 87(2)(b) believed the officers were getting mad at him, as § 87(2)(b) was drunk and yelling. The officers surrounded § 87(2)(b) for approximately five to 10 minutes before a FDNY ambulance arrived. Officers and an EMT then walked § 87(2)(b) to an ambulance.

In her CCRB interview (**BR 30**), § 87(2)(b) said that she saw officers standing around § 87(2)(b) as he sat on the stoop of a building across the street from § 87(2)(b). § 87(2)(b) yelled at the officers and toward § 87(2)(b). § 87(2)(b) told officers to not get close to him, told § 87(2)(b) to come over and to not let officers kill him. § 87(2)(b) told officers, “You’re not gonna take me!” and officers responded that they were indeed going to take him to the hospital. Some officers remarked that they believed § 87(2)(b) was on some sort of substance. § 87(2)(b) was shouting so many things; § 87(2)(b) did not know what was going on, but was scared for § 87(2)(b). § 87(2)(b) described § 87(2)(b) as becoming more “maniac” when officers were there, adding that how the officers were positioned around § 87(2)(b) may have triggered his claustrophobia. § 87(2)(b) tried to approach § 87(2)(b) where he was seated on the steps. Officers did not allow § 87(2)(b) to get close to § 87(2)(b) and did not allow § 87(2)(b) to touch § 87(2)(b). Within 30 seconds, two officers walked § 87(2)(b) to an ambulance.

Per PO Gaylog’s memo book entries on the night of the incident (**BR 47**), the 911 call that originated police involvement in this incident came over as an assault in progress with shots fired outside of § 87(2)(b) in the Bronx.

Per Sgt. Burke’s BWC (**BR 02**), he approaches § 87(2)(b) at the 01:00, running toward § 87(2)(b) and § 87(2)(b) walks away. At 01:17, Sgt. Burke asks what happened to § 87(2)(b) and says that § 87(2)(b) has a gunshot wound. § 87(2)(b) says that he scraped himself by falling on the ground. Sgt. Burke says, “Hey bud, you gotta stop. Let’s see. We’ve got an ambulance here.” § 87(2)(b) takes a swig of alcohol from a bottle in a plastic bag. Sgt. Burke says, “Can you put that down? We’ve got an ambulance here, we’re gonna check you out. You’re bleeding all over the place, buddy.” § 87(2)(b)’s lower arm and hand is covered in blood and there are blood stains on the pavement. At 2:00, a FDNY EMT asks Sgt. Burke about § 87(2)(b) “Can he make it over here?” Sgt. Burke replies, “Yeah,” and says to § 87(2)(b) “Hey bud, come here. Come on. Let’s go to the ambulance. Come on. Up.” § 87(2)(b) repeatedly refuses to go to the ambulance, saying that he did not call for police. § 87(2)(b) is bleeding heavily. § 87(2)(b) claims repeatedly that he fell on the floor. § 87(2)(b) climbs up a stoop, tells officers to get away from him, and tells both EMTs and officers, “Don’t come up [the stoop]!” At 03:34, an unknown civilian walks § 87(2)(b) down the stoop towards the ambulance. At 03:51 the unknown civilian begins to pick up a blood-stained jacket off the hood of a car as he walks with § 87(2)(b). Sgt. Burke says, “That’s his jacket? We gotta check it.” At 04:00, § 87(2)(b) walks away from officers and the ambulance before he is evaluated by EMS.

From here, PO Dempsey’s BWC (**BR 04**) has a better angle. At 03:00, § 87(2)(b) approaches two bystanders and shuffles towards them with his hands in the pockets of his sweatshirt. Both bystanders run away. PO Dempsey directs § 87(2)(b) to stop moving and takes hold of him. § 87(2)(b) claims that one of the bystanders approached him first (PO Dempsey’s

BWC does not support this claim). PO Dempsey and PO Cruz then frisk § 87(2)(b)'s pockets on his pants and sweatshirt. At 03:25, as PO Dempsey and PO Cruz frisk § 87(2)(b)'s front sweatshirt pocket, PO Dempsey asks, "What do you have in here?" PO Dempsey pulls out a black metal object from the pocket. § 87(2)(b) replies, at first inaudibly, but then, "It's a fucking taser. To protect myself." PO Dempsey holds onto the taser. PO Cruz removes § 87(2)(b)'s telephone from the front sweatshirt pocket before placing it back in the pocket. At 03:45, PO Dempsey directs § 87(2)(b) to walk to the ambulance. PO Dempsey walks with § 87(2)(b) to the ambulance. § 87(2)(b) gets in the ambulance at § 87(2)(b).

At 02:45 of PO Ferguson's BWC (BR 09), Sgt. Burke directs PO Ferguson to "toss" the blood-stained jacket mentioned above. PO Ferguson complies, searching the jacket's pockets and removing the contents before placing the contents back inside the jacket. Sgt. Burke asks if PO Ferguson was able to locate any identification, and PO Ferguson responds in the negative. PO Ferguson ultimately places the jacket on the ground at 04:07, while § 87(2)(b) lies in the ambulance with officers and EMTs.

§ 87(2)(g)

§ 87(2)(g)

Per Patrol Guide Procedure 216-01 (BR 31), uniformed members of service shall cooperate with ambulance/hospital personnel in every reasonable manner.

Per Patrol Guide Procedure 200-02 (BR 48), among the values of the NYPD is protect the lives of fellow citizens.

Sgt. Burke responded to a 911 call alleging shots fired and discovered § 87(2)(b) at the incident location bleeding profusely from the right arm from an apparent gunshot wound. § 87(2)(b), § 87(2)(g)

Per Patrol Guide Procedure 221-13 (BR 32), when a uniformed member of service reasonably believes that a person is apparently emotionally disturbed, that person must be taken into protective custody because the person is conducting themselves in a manner likely to result in a serious injury to themselves or others. Furthermore, officers are to remove property that is dangerous to life or will facilitate escape when removing someone to an ambulance.

§ 87(2)(b) admitted to being heavily intoxicated and is seen on BWC actively drinking liquor in front of the officers and refusing requests to stop. When the officers first addressed him, § 87(2)(b) (who was heavily bleeding) lied and said that his injuries resulted from a fall, not a gunshot wound. § 87(2)(b) refused officers' orders to be evaluated by EMTs and thereafter fled when EMTs first tried to evaluate his physical condition. Upon fleeing, § 87(2)(b) apparently menaced two pedestrians and continued to ignore officers' verbal instructions while yelling at them. § 87(2)(b), § 87(2)(g)

**Allegation (G) Force: En route to § 87(2)(b) Police Officer Robert Gaylog used a chokehold against § 87(2)(b)**

**Allegation (H) Force: En route to § 87(2)(b) Police Officer Robert Gaylog restricted § 87(2)(b)'s breathing.**

**Allegation (I) Force: En route to § 87(2)(b) Police Officer Robert Gaylog used physical force against § 87(2)(b)**

In his CCRB interview (**BR 29**), § 87(2)(b) said he entered the ambulance with three officers as well as EMT § 87(2)(b). The officers and EMT § 87(2)(b) made § 87(2)(b) sit down in the ambulance. PO Gaylog sat behind § 87(2)(b)'s head in the ambulance, whereas two other officers (determined by the investigation to be PO Cruz and PO Dempsey) sat by § 87(2)(b)'s feet. EMT § 87(2)(b) positioned himself on § 87(2)(b)'s left side. § 87(2)(b) admitted that he was not cooperating with the officers and EMTs, citing his intoxicated and agitated state. § 87(2)(b) yelled at the officers and EMT § 87(2)(b) multiple times that he was drunk and that he had been shot. § 87(2)(b) yelled other things as well and moved his body around. EMT § 87(2)(b) held § 87(2)(b)'s right arm and squeezed it – EMT § 87(2)(b) “I’ve got to apply pressure” – and § 87(2)(b) responded by saying that the squeezing hurt, telling EMT § 87(2)(b) to stop, and moving his body around. PO Gaylog, from behind § 87(2)(b) put his entire arm around § 87(2)(b)'s neck and applied pressure to § 87(2)(b)'s neck. § 87(2)(b) believed that PO Gaylog’s bicep was the primary point of contact with his neck. PO Gaylog applied pressure to § 87(2)(b)'s neck for approximately 20 seconds. § 87(2)(b) did not specifically remember if he could not breathe at all as a result of PO Gaylog’s actions, but § 87(2)(b) doubted that he was able to breathe during those 20 seconds. PO Gaylog stopped when EMT § 87(2)(b) looked up, saw what was happening, and told PO Gaylog, “Don’t do that.”

In her CCRB interview (**BR 30**), § 87(2)(b) said that she saw PO Gaylog pull § 87(2)(b)'s sweatshirt hood down over his face for a few seconds. § 87(2)(b) yelled, “I can’t breathe,” for approximately ten seconds. An EMT intervened and PO Gaylog stopped pulling § 87(2)(b)'s sweatshirt hood over § 87(2)(b)'s face. § 87(2)(g)

§ 87(2)(b) As shall be discussed further below, PO Gaylog only put § 87(2)(b)'s sweatshirt hood over his face when the ambulance was in motion on the way to § 87(2)(b), § 87(2)(b), § 87(2)(g)

As captured in PO Cruz’s BWC (**BR 03**) at the 11:55 timestamp, PO Dempsey’s BWC at the 11:15 timestamp, and PO Gaylog’s BWC at the 09:03 timestamp, § 87(2)(b) is inside a moving FDNY ambulance when he lunges his head toward EMT § 87(2)(b). PO Gaylog rolls down the hood of § 87(2)(b)'s sweatshirt on his face. § 87(2)(b) says, “I’m going to report this to my lawyer. Look!” Immediately, EMT § 87(2)(b) says, “Don’t cover his face,” and PO Gaylog releases the hood.

As shown best by PO Cruz’s BWC between the 05:30 and 15:45 timestamps (which captures the entire ambulance ride between § 87(2)(b) and § 87(2)(b) **BR 03**), § 87(2)(b) repeatedly ignores direction from officers and EMTs, yells constantly, requires leg restraints, and sways his torso, and threatens the EMT by saying, “I’m going to fuck you up.” At no point does PO Gaylog ever place his arm around § 87(2)(b)'s neck or apply pressure to his throat.

Per PO Dempsey’s (**BR 04**) and PO Gaylog’s (**BR 10**) BWC footage, which captures the entire ambulance ride, PO Gaylog never places his arm around § 87(2)(b)'s neck nor does he apply pressure to § 87(2)(b)'s throat.

In his CCRB interview (**BR 33**), PO Gaylog said his main responsibility in the ambulance was to keep § 87(2)(b)'s head and torso stable despite § 87(2)(b)'s attempts to flail around. At one point, while PO Gaylog tried to stabilize § 87(2)(b)'s head § 87(2)(b) was flailing around by moving his head and torso, specifically pulling himself upward), § 87(2)(b) appeared to try to bite EMS (he lunged forward in a jerking manner, leading with his face). In response, PO Gaylog tried to pull § 87(2)(b) back and in the process, the hood of § 87(2)(b)'s sweatshirt briefly covered his head. PO Gaylog noted that he did not want to pull § 87(2)(b) back in a fashion that could hurt his head and neck. Once PO Gaylog realized that § 87(2)(b)'s hood covered his face (about a second), PO Gaylog let go to let the hood fall back down. As PO Gaylog let go, an EMT said, “Don’t cover his face.” PO Gaylog did not intend to pull § 87(2)(b)'s hood down. PO Gaylog never restricted § 87(2)(b)'s breathing, as the hood was only placed over his face for about a second.

The AIDED report prepared by Police Officer Ana Alba of the 44<sup>th</sup> Precinct (**BR 34**) listed § 87(2)(b)'s only injury as a gunshot wound to the right forearm.

PO Cruz, PO Dempsey, and PO Gaylog were the only officers inside the ambulance, and all recorded the entire incident on BWC (**BR 03, BR 04, BR 10**). At no point does PO Gaylog ever place his bicep around his neck. § 87(2)(g)

§ 87(2)(b) never mentioned in his interview whether his breathing was restricted when PO Gaylog held his hood over his face. While § 87(2)(b) alleged that § 87(2)(b) yelled, "I can't breathe" while PO Gaylog held the hood over § 87(2)(b)'s face, BWC does not capture this and § 87(2)(b) could not have seen this happen. BWC showed that § 87(2)(b) was able to speak, but his ability to speak does not necessarily mean that § 87(2)(b)'s breathing was not restricted. PO Gaylog denied restricting § 87(2)(b)'s breathing. § 87(2)(b), § 87(2)(g)

Per Patrol Guide Procedure 221-01 (**BR 51**), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

It was apparent on BWC that § 87(2)(b) lunged his head towards EMT § 87(2)(b) immediately prior to PO Gaylog placing § 87(2)(b)'s hood over his face. § 87(2)(b), § 87(2)(g)

**Allegation (J) Abuse of Authority: Detective Yurantz Assade entered § 87(2)(b) Apartment § 87(2)(b) in the Bronx.**

**Allegation (K) Abuse of Authority: Detective Yurantz Assade searched § 87(2)(b) Apartment § 87(2)(b) in the Bronx.**

It was undisputed that Det. Assade, along with PO Cullen and PO Graves, entered and searched § 87(2)(b) Apartment § 87(2)(b).

§ 87(2)(b) was at the hospital during this portion of the incident.

In her CCRB interview (**BR 30**), § 87(2)(b) said that three officers rang the intercom to her apartment. Two officers, both wearing khaki pants and a shirt with a collar, said that they were part of a gun task force. The third officer wore a regular blue uniform. § 87(2)(b) allowed them inside the building, as she understood why the officers had come to the apartment given what had happened to § 87(2)(b). The three officers, who the investigation determined to be Det. Assade, PO Graves, and PO Cullen, went to § 87(2)(b)'s door. Det. Assade and PO Cullen asked § 87(2)(b) if she or § 87(2)(b) had any weapons, saying, "If you have anything here, just give it to us" and no one would have to know. Det. Assade and PO Cullen said that § 87(2)(b) would not get in trouble if § 87(2)(b) gave them any weapons that were in the house. § 87(2)(b) did not want her neighbors to listen in on the conversation and believe that she or § 87(2)(b) had guns in the apartment, so she allowed the three officers into her apartment to discuss the matter further. Det. Assade and PO Cullen told § 87(2)(b) that if she let them search her apartment – specifically § 87(2)(b)'s belongings – they would not have to come back later with a warrant. If § 87(2)(b) did not allow them to search the apartment, they would return later with a warrant, likely very early

in the morning and without warning. § 87(2)(b) said that she understood how those kinds of warrants work and did not want officers to break down her door. Thus, she told Det. Assade and PO Cullen that they could look through § 87(2)(b)'s belongings in their bedroom. § 87(2)(b)'s belongings comprised three bins and a safe against the wall of the bedroom. § 87(2)(b) allowed them to search through § 87(2)(b)'s things because she did not want the officers to think that she was hiding anything.

Thus Det. Assade and PO Cullen proceeded to § 87(2)(b)'s and § 87(2)(b)'s room, while PO Graves kept guard over § 87(2)(b). § 87(2)(b) walked over to her room and saw that Det. Assade and PO Cullen were looking through her things. Det. Assade and PO Cullen had lifted the mattress, looked through a vanity in the bedroom, looked through a safe that § 87(2)(b) had in the room, looked through a bin of § 87(2)(b)'s clothes, and looked around the television and cable box in the bedroom. Det. Assade and PO Cullen had also begun to look through § 87(2)(b)'s closet, which she knew because objects from her closet had been removed. Det. Assade and PO Cullen offered to place everything back inside the closet, but § 87(2)(b) said that she would take care of it. § 87(2)(b) told Det. Assade and PO Cullen that she had only acceded to them searching through § 87(2)(b)'s belongings and were going “overboard” by looking through her things – the officers responded that § 87(2)(b) may have hidden something in § 87(2)(b)'s possessions. § 87(2)(b) told Det. Assade and PO Cullen that § 87(2)(b) had not gone inside the apartment between the time he was shot and the time he was taken to the hospital. Det. Assade and PO Cullen looked through § 87(2)(b)'s room for approximately 15 minutes. Det. Assade and PO Cullen stepped into the bathroom and looked around but § 87(2)(b) said that there was nothing in the bathroom which Det. Assade and PO Cullen could look through. Det. Assade and PO Cullen never looked inside the children's room. § 87(2)(b) believed that Det. Assade and PO Cullen moved her sofa. Det. Assade and PO Cullen also looked in storage containers that had been placed on top of the kitchen cabinets. Det. Assade and PO Cullen asked § 87(2)(b) where § 87(2)(b) normally went inside the house so that they could search in the appropriate places. Det. Assade and PO Cullen said that they found a bullet in the safe.

§ 87(2)(b), § 87(2)(g)

However, at no point in the BWC does § 87(2)(b) ask officers to stop searching, nor did § 87(2)(b) specify specifically where officers could search. At the 02:45 timestamp of Det. Assade's BWC, PO Graves invites § 87(2)(b) to oversee them looking through her bedroom.

All the BWCs (**BR 24-28**) begin their recordings after officers have already entered § 87(2)(b)'s apartment.

None of the officers recorded their verbal presentation of a consent to search nor § 87(2)(b)'s verbal response to whether or not she consented to search. While Det. Assade recorded the signing of the consent to search form by § 87(2)(b) at the 01:00 timestamp, Det. Assade does not verbally present a consent to search, nor does § 87(2)(b) verbally consent. Furthermore, at the 01:30 timestamp, it is clear that Det. Assade directs § 87(2)(b) to write, “items” on the form line specifying the “vehicle or items to be searched.”

In his CCRB interview (**BR 35**), Det. Assade said that § 87(2)(b) verbally consented to a complete search of apartment for a firearm. § 87(2)(b) also signed a Consent to Search form which Det. Assade prepared.

Per a copy of the consent to search form (**BR 36**), § 87(2)(b) consented to a complete search of the apartment with the “vehicle or items to be searched” line filled out with “items.” The form also lists the time, location, and date of the search. The following language also exists on the form: “I have been advised of my right to refuse to consent before any search is conducted. I understand that I have the right to revoke such consent, in whole or in part, at any time.” Det. Assade is the signatory for the requesting member of service, whereas PO Graves is the signatory for the witnessing member of service and Sgt. Williams is the reviewing supervisor.

§ 87(2)(g)



§ 87(2)(g)

As prescribed in People v. Gonzalez, 39 N.Y.2d 122 (BR 37), all consents to search must be a free and unconstrained choice. Official coercion, even if deviously subtle, nullifies apparent consent.

§ 87(2)(b), § 87(2)(g)

Per New York City Administrative Code 14-173 (BR 38), officers are to use plain and simple language in a non-threatening manner that any person who is the subject of a search is being asked to voluntarily, knowingly, and intelligently consent to such a search, and explain that such a search will not be conducted if the subject refuses to provide consent to the search. Furthermore, the code requires officers to record on their BWC the aforementioned presentation of the consent to search and the individual's response whether or not the civilian consents. Finally, the code requires officers to properly document the time, location, and date of such a search.

§ 87(2)(g), § 87(2)(b)

**Allegation (L) Abuse of Authority: At § 87(2)(b) Apartment § 87(2)(b) in the Bronx, Detective Yurantz Assade failed to provide § 87(2)(b) with a business card.**

In her CCRB interview (BR 30), § 87(2)(b) said that no officers provided her with a business card at the conclusion of this incident. Det. Assade provided his phone number to § 87(2)(b) and said that his name was CJ.

In his CCRB interview (BR 35), Det. Assade said that, as he left the location, he verbally provided his name and phone number to § 87(2)(b). Det. Assade saw § 87(2)(b) take out her cell phone and input Det. Assade's name and phone number. Det. Assade also believed that he provided § 87(2)(b) his business card with his phone number on the back.

None of the BWC footage taken by Det. Assade, PO Cullen, and PO Graves (BR 24-28) shows Det. Assade providing a business card to § 87(2)(b). However, the BWC footage does not capture the entire time officers are inside § 87(2)(b)'s apartment § 87(2)(g).

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

### Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named a victim in five allegations (**BR 42**).
  - § 87(2)(b)
- § 87(2)(b) has been party to one CCRB complaint and has been named a victim in six allegations (**BR 43**).
  - § 87(2)(b)
- PO Cruz has been a member of service for six years and has been a subject in three previous cases and four charges, none of which were substantiated. § 87(2)(g)
- PO Cullen has been a member of service for 10 years and has been a subject in one previous complaint and two charges, neither of which were substantiated. § 87(2)(g)
- PO Dempsey has been a member of service for three years and has been a subject in one previous case and two charges, neither of which were substantiated. § 87(2)(g)
- PO Gaylog has been a member of service for four years and has been a subject in two previous cases and two charges, one of which was substantiated.
  - 201905313 involved a substantiated allegation of discourtesy – word. The Board recommended formalized training and the NYPD imposed instructions.
  - § 87(2)(g)
- PO Graves has been a member of service for seven years and has been a subject in seven cases and 20 charges, § 87(4-b) § 87(2)(g)
  - § 87(4-b), § 87(2)(g)
  - § 87(2)(g)
- Det. Assade has been a member of service for 15 years and has been a subject in 12 previous cases and 33 charges, four of which were substantiated § 87(4-b) § 87(2)(g)
  - 200905169 involved a substantiated allegation of a vehicle stop. The Board did not recommend any discipline but the NYPD imposed Instructions.

- 201600040 involved substantiated allegations of a frisk and a vehicle search. The Board recommended Command Discipline A, and the NYPD imposed Command Discipline A.
- § 87(4-b), § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]
- Sgt. Burke has been a member of service for ten years and has been a subject in 14 previous cases and 34 charges, three of which were substantiated § 87(4-b) § 87(2)(g).
  - § 87(4-b), § 87(2)(g) [REDACTED]
  - 201900379 involved a substantiated allegation of discourtesy – word. The Board recommended and the NYPD imposed command level instructions.
  - 201908431 involved a substantiated allegation of discourtesy – word. The Board recommended and the NYPD imposed formalized training.

#### **Mediation, Civil, and Criminal Histories**

- This case was not suitable for mediation.
- As of May 25, 2021, the New York City Office of the Comptroller has no record of any Notices of Claim filed regarding this incident (**BR 44**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad: 10

|                                        |                            |                   |
|----------------------------------------|----------------------------|-------------------|
| Investigator: <u>Ethan C. Waterman</u> | Inv. <u>Ethan Waterman</u> | <u>01/24/2022</u> |
| Signature                              | Print Title & Name         | Date              |

|                                 |                      |                  |
|---------------------------------|----------------------|------------------|
| Squad Leader: <u>Eric Rigie</u> | IM <u>Eric Rigie</u> | <u>1/25/2022</u> |
| Signature                       | Print Title & Name   | Date             |

|                 |                    |       |
|-----------------|--------------------|-------|
| Reviewer: _____ | _____              | _____ |
| Signature       | Print Title & Name | Date  |

